

IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, FLORIDA
FAMILY LAW DIVISION

IN RE: THE MARRIAGE OF
SARAH HANSON,
Petitioner,
and
CHRISTOPHER HANSON,
Respondent.

Case No.: 24-DR-1150

Division: D

**RESPONDENT'S MOTION TO VOID POST-MARITAL AGREEMENT ON GROUNDS
OF DURESS, COERCION, AND FRAUD, AND TO SUPERCEDE PRIOR ORDERS ON
DISCOVERY AND ENTER ORDER SPECIFICALLY ALLOWING SUBPOEANS TO
CHASE AND OTHER FINANCIAL INSTITUTIONS AND ORDERING WIFE TO
FULLY COMPLY WITH FFLRP 12.285 - Mandatory Disclosure**

COMES NOW, the Respondent, CHRISTOPHER HANSON, on his own behalf, and moves this Court to void the Post-Marital Agreement (PMA) executed on October 8, 2023, between the Respondent and the Petitioner, SARAH HANSON, on the grounds of coercion, duress and fraud under Florida law, in order to allow the relevant financial discovery to proceed quickly. In support thereof, Respondent states:

FACTUAL BACKGROUND

Marriage and Separation Discussions:

1. The parties were married on October 28, 2016.

2. Significant marital problems started in 2019 when Wife was pregnant with the parties' second child.
3. Wife assaulted Husband as she recklessly drove a vehicle while repeatedly striking and swinging wildly with her hand at Husband as their youngest child watched in sheer terror and fear.
4. The parties decided to work on the marriage and tried counseling for an extended period.
5. Sometime in late 2022 or early 2023, discussions regarding a possible separation agreement commenced due to irreparable differences that were becoming insurmountable.
6. Whenever Husband would ask Wife if she could contribute to some household expense and/or if he could see where her paychecks were going to better plan, Mrs. Hanson would immediately shut down the idea in an aggressive and loud manner that would wake the children.
7. There were many occasions where the children witnessed Mrs. Hanson verbally abusing Husband and at least one occasion where Mrs. Hanson hysterically told the children about a separation that did not actually occur until a couple of years later.
8. In 2020, Husband's employer changed the way it paid compensation causing Husband to earn less money.
9. Husband spent over a year exploring firms to make a move as a lateral partner.
10. Ever since 2020, Husband's income suffered due to the firm's new compensation policy and then changing firms/losing accounts receivable.
11. During those years, Husband would frequently ask Wife about whether she could contribute more as the parties dealt with some unexpected costs including a new roof and mold remediation.
12. Wife consistently advised that she could not as she was barely able to stay current on her credit card bills.
13. Wife consistently refused Husband access to her account where her paychecks were deposited, and escalated fights any time Husband would raise the issue.
14. The marriage deteriorated over the years as Husband made less money and requested more assistance from Wife.

15. The parties entered into a pre-nuptial agreement as well, but that has no relevance to the current disputes before this Court – enforceability of the Post Marital Agreement (pma) and necessary discovery.

Financial Misrepresentations by Petitioner:

16. Wife would consistently tell Husband that she did not have any money left over after paying her student loans, for some groceries, and the few household/family bills that she occasionally paid out of her earnings.
17. Mrs. Hanson would often use a joint account funded by Husband for her purchases and payments.
18. Husband had and asked many questions about whether Wife was being honest, but also wanted to make every effort to make the marriage work and shield the children from the fighting those questions always caused.
19. The couple did not have any money problems so Husband chose to focus attention on work and the needs of the children.
20. On April 1, 2023, Husband learned that Wife had continued for yet another year to keep her paychecks coming with the absolute minimum in Federal deductions causing tax debt to come to light every April. (This was started in 2019 when our second daughter was born, and Wife continued the process in 2020, 2021, and 2022, despite conversations about the tax liability it caused in April 2020 and 2021.)
21. The total owed for Wife's underpayments for tax year 2022 was about \$18,000.
22. Petitioner represented to Respondent that she was unable to pay or even help with the \$18,000 tax debt accrued from her 2022 earnings when the debt came due in April 2023. (Most conversations were verbal although the Court will find confirmation of Petitioner's representations in writing at Docket #91, p.15-17).
23. The most direct conversations about Wife's marital assets around the time of entering the prenup was that referenced in the email correspondence at Docket #91, when Wife led Husband to believe that she had far less in assets than the information Wife already produced and disclosed demonstrates.
24. In other words, the fraud is already evident, but it's really what remains concealed that is causing the family such stress and suffering.

25. Obviously, Husband has significant questions and concerns about Mrs. Hanson's veracity given the course of delay, obstruction, and concealment suffered the last several months.
26. Just what is worth hiding that one would sink to bringing such dishonesty and evil into this conflict?
27. That's a question that must be answered fully if there's any hope of reestablishing a successful coparenting relationship.
28. Husband expected to finally catch up on some of the income he had lost during the years since his decision to change firms, specifically on April 1, 2023.
29. However, in addition to Wife's tax shortage of \$18,000, Husband's new firm was requiring him to report disbursements from April 2022 and April 2023 as income for 2022 which erased any positive impact the payment had on Husband's bottom line.
30. Wife was aware how frustrating this was for Husband, yet insisted that she could not cover the \$18,000 debt from her continuing with minimum withholding from her checks for the third year in a row (after similar problems at tax time during the 2 prior years).
31. This resulted in massive frustration for Husband who could not understand where Wife's paychecks were going the past few years, but Wife continued to refuse Husband any access to her accounts or funds from her paychecks.
32. Subsequent financial disclosures provided by Petitioner in this litigation demonstrate that she had sufficient funds to pay the \$18,000 tax debt at the time of her representation that she did not.

Wife's insistence on money for purchasing a house of her own before moving out of Husband's home:

33. During discussions about separation, Wife consistently refused to consider renting a home or an apartment even for a short period.
34. She insisted on purchasing a home, and wanted to proceed with the post-marital agreement because she did not have enough money for the down payment.
35. By August of 2023, Wife had become so disagreeable and difficult that Husband had no choice but to leave the home.
36. In the months before Husband was forced to leave the home, Wife had come up behind him and grabbed his head and neck and choked him unconscious.

37. Despite never being away from either of his children for more than a single night, Husband packed his vehicle and left with his dog in August of 2023, staying in Michigan for a few weeks.
38. Wife actually brought the children to visit Michigan, but after a dinner with family and friends, Wife again, brought any hopes of a positive relationship to a particularly vile end.
39. When Husband returned from Michigan in September of 2023, things were completely impossible in the home.
40. Wife frequently lashed out at Husband in front of the children.
41. Given that Wife refused to leave the home without getting the proceeds from the marital settlement agreement, Husband had to cave to Wife's demands yet again.
42. Post-Marital Agreement: On October 8, 2023, the parties executed a PMA, which purported to resolve financial responsibilities and property division upon separation. Respondent agreed to pay Petitioner \$100,000 in exchange for her waiving certain rights to his assets and future support.
43. Husband provided full and proper disclosures to Wife including all account balances and passwords.
44. It was understood by both parties that Husband was paying far less than what Wife would have otherwise been entitled to under the law.
45. Husband believed this to be a gesture of good faith given how Wife was leaving the marriage at a time when Husband's career issues and health problems were particularly concerning, especially with adding the divorce and sudden responsibility for all of the children's activities for half of the time.
46. Nevertheless, Husband had some lingering concerns that Wife had not been honest with him about marital property for many years.
47. As soon as Wife acted suspiciously related to mandatory disclosures in May of 2024, Husband knew that he'd been lied to.
48. Husband has made every good faith effort to resolve this issue in as cooperative and productive manner as possible, while Wife and her counsel have resorted to unfortunate tactics to keep the larger misrepresentations buried.

Wife's attempt to sue Husband and admission to a lack of disclosure:

49. When Wife insisted on buying a home before she would move out, she advised Husband that he may need to sign paperwork acknowledging that Wife was establishing her homestead elsewhere.
50. Husband indicated that he had no problem doing that but Wife should provide the paperwork in advance to make sure that there is no problematic language.
51. Husband wanted to be sure that he was not going to be on the mortgage or in any way liable for payments or liability associated with the home.
52. Wife finally provided documents the evening before they were to be signed and Husband's name was all over the mortgage, far beyond the minor homestead issue.
53. Wife's reaction was to sue Husband for the money.
54. The Court will find Wife's filing causing further duress and coercion attached below as Exhibit A. (p. 14-17 below)
55. Wife was attempting to hold Husband responsible for her failure to obtain contractual language before she committed money to a contract.
56. Wife states in the November filing below, "the parties outlined a separation agreement on October 8, 2023, which did not include financial disclosures."
57. Husband absolutely did provide disclosures to include balances, account information and passwords in writing for all financial accounts before signing the separation agreement.
58. Wife continued to refuse Husband access to any of the marital property she earned during the last few years of the marriage throughout that time and the signing of the separation agreement.
59. Given that Wife has acknowledged a lack of disclosure, the discovery sought by Husband should be ordered immediately without sending new notices of intent for subpoenas.

Wife and Mr. Davis's efforts to delay, distract, burden, and conceal:

60. The Court is well aware of Mrs. Hanson suddenly filing 16 pages of interrogatories as a preemptive attack on Husband, who wanted to avoid litigation at nearly all costs.
61. Husband maintains that every action Wife has taken since the onset of this litigation is specifically motivated by Husband's pursuit of this information. Docket #97, ¶35A-M.

62. If the Court looks at the pattern in those paragraphs of Docket #97, it becomes clear that all of the tactics employed by Wife and her counsel relate to delay and concealment of financial evidence, the one thing Husband seeks.
63. The parties went through years of marital issues without requiring attorneys.
64. Many issues were settled including the 50/50 split on the children which neither party ever questioned at anytime before Wife's filing on October 2, 2024, about 26 days before the October 28, 2025.
65. For years as the parties discussed separation, the one point of agreement was that the children needed both of us and 50/50 was a given.
66. Unfortunately, despite the lack of any rationale or a reason, Wife had entirely changed course on that in order to weaponize the children in this conflict.
67. Despite the children thriving socially, in school, and in sports and extracurricular activities, Wife and Mr. Davis seem intent on tipping over the apple cart as part of this delay and conceal strategy.
68. There have been zero complaints about Husband's treatment of the children.
69. There have been zero concerns about the welfare of the children.
70. The children have missed zero days of schools and zero activities under Husband's care.
71. There have been no injuries or illnesses under Husband's care.
72. There have been no tardies for school or activities with the children.
73. So, the only logical conclusion one could reach under these facts is that Wife and Mr. Davis are willing to push action obviously detrimental and dangerous to the children's well-being to keep this secret buried.
74. Obviously, that is antithetical to any productive coparenting relationship and basic principles of Florida family law allowing for broad discovery.

Legal Analysis

75. Under Florida law, a marital agreement may be voided if it was procured through fraud, duress, coercion, or misrepresentation. Casto v. Casto, 508 So. 2d 330 (Fla. 1987); Parra de Rey v. Rey, 114 So. 3d 371 (Fla. 3d DCA 2013).

76. Fraud requires a showing that one party intentionally misrepresented material facts, which the other party relied upon to their detriment. Hjortaas v. McCabe, 656 So. 2d 168 (Fla. 2d DCA 1995).
77. Duress involves a wrongful act or threat that overcomes the free will of a party, compelling them to enter an agreement they would not otherwise have accepted. Hetrick v. Hetrick, 493 So. 2d 51 (Fla. 3d DCA 1986).
78. Petitioner's false assertion in April 2023 that she could not pay an \$18,000 tax debt was a material misrepresentation.
79. Financial disclosures later revealed she had ample resources to cover the tax debt, demonstrating intentional deceit to induce Respondent's reliance, based only on what's come to light to date.
80. What concerns Husband far more is what measures Wife has used to delay and distract from what remains concealed.
81. Respondent relied on this misrepresentation when agreeing to the \$100,000 payment, believing it was necessary and fair assuming Petitioner did not even have the \$18,000 to pay her tax debt available as she had specifically represented.
82. The non-disclosure of Petitioner's true financial status constitutes fraudulent concealment, undermining the PMA's validity.
83. Husband maintains that lack of disclosure from Wife and placing the PMA at issue are sufficient to require the Chase subpoenas and other financial discovery in this matter, as part of the Court's duty to assess reasonableness of the agreement. Parra de Rey v. Rey, 114 So. 3d 371 (Fla. 3d DCA 2013).
84. However, given the Court's refusal to allow any discovery under the circumstances and apparently excusing Wife from Mandatory disclosures/Compliance with the Certificate of Compliance requirement, Husband must pursue this motion now in order to limit damage to the family.
85. Petitioner's refusal to vacate the marital home without purchasing a new residence, coupled with her false claim of insufficient funds, placed Respondent under significant pressure.
86. This pressure was exacerbated by Respondent's health issues, including a pending lumbar fusion surgery decision, and career concerns, which limited his capacity to endure

prolonged cohabitation conflict that Wife was all too happy to exacerbate, even right in front of the children.

87. Husband has already produced ring video demonstrating what it had become like living in the marital home during this period, even directly in front of the children who were obviously concerned and disturbed by the way Wife treated Husband. (That video is incorporated by reference into this motion and will be provided via disc at the upcoming hearing unless the Court has other instructions).

88. By leveraging her continued presence in the home and alleged financial need, Petitioner overcame Respondent's free will, coercing him into signing the PMA under terms he would not have otherwise accepted absent such duress.

89. Had husband not been under such duress and coercion from the intentional and dishonest acts from Wife, he would have insisted on more information and financial disclosures before signing.

90. Given the levels of stress and conflict, and serious concerns over the children's welfare, Husband was simply unable to process the amount of marital assets that Wife was likely concealing given her income and contribution to expenses over the years.

91. The relationship between the parties to an antenuptial (or postnuptial) agreement is one of mutual trust and confidence. Since they do not deal at arm's length they must exercise a high degree of good faith and candor in all matters bearing upon the contract. , *supra*, 143 So.2d at 21:

“The relationship between the parties to postnuptial agreement like what's at issue in this motion is one of “mutual trust and confidence. Since they do not deal at arm's length they must exercise a high degree of good faith and candor in all matters bearing upon the contract.”

92. The fact that Husband and Wife were both unrepresented by counsel throughout all time periods associated with the PMA further demonstrates the necessity for full compliance with the fiduciary responsibilities inherent in the marital relationship. Fuller v. Fuller, 68 So.2d 177 (Fla.1953); Zakoor v. Zakoor, 240 So.2d 193 (Fla. 4th DCA 1970). Del Vecchio v. Del Vecchio, *supra*, 143 So.2d at 21:

93. "A valid antenuptial (or postnuptial) agreement contemplates a full and frank disclosure" or at least "a general and approximate knowledge" of that spouse's assets. The term

'approximate' is, for this purpose, held synonymous with 'near', 'close to' or 'approaching'." Del Vecchio v. Del Vecchio, 143 So.2d 17, 20 (Fla.1962).

94. Husband had and continues to have no idea about the extent of marital assets Wife holds in her accounts because she has continued to conceal critical information, necessitating that this Court allow the necessary discovery to get these secrets out in the open.
95. It's important to note that Husband believed Wife's representation that she didn't even have money to pay the \$18,000 tax debt at the time, so obviously, there was no disclosure and no approximate knowledge of Wife's marital assets.
96. Despite 9 months of litigation with the singular goal of getting that information, Husband still has no information about Wife's true marital assets, which requires the Court to allow the additional discovery and void the PMA.
97. Petitioner's continued refusal to provide complete financial disclosures in this litigation [See Respondent's Motion for Enforcement and Contempt, Docket #84] reinforces the fraudulent intent initiated during PMA negotiations, necessitating this motion and the requested discovery to proceed efficiently.
98. "Duress" is a "condition of mind produced by an improper external pressure or influence that practically destroys the free agency of a party and causes him [or her] to do an act or make a contract not of his [or her] own volition. *Herald v. Hardin*, 95 Fla. 889, 116 So. 863, 864 (1928).
99. To prove duress, the challenging spouse must show: (1) "that the act sought to be set aside was effected involuntarily and thus not as an exercise of free will"; and (2) "that this condition of mind was caused by some improper and coercive conduct of the opposite side." *Herald v. Hardin*, 95 Fla. 889, 116 So. 863, 864 (1928).
100. "Coercion occurs where the defending spouse, through undue influence or moral or economic force, compels the challenging spouse to sign a prenuptial agreement under circumstances which, from a subjective viewpoint, evidence that the challenging spouse did not act of his or her own free will." *Gribbin v. Gribbin*, 499 So. 2d 858, 862 (Fla. 4th DCA 1986).
101. As discussed above, by the summer of 2023, Wife had become so disruptive and difficult that the children's and Husband's wellbeing became a real concern.
102. By September of 2023, things were completely impossible in the home.

103. Wife frequently lashed out at Husband in front of the children during these months as demonstrated in the Ring video to be admitted into evidence.
104. Wife's refusal to leave the home without getting the proceeds from the marital settlement agreement combined with the environment her disruptive behavior created for the children produced the coercion and duress described in the case law above that the Court should allow the discovery and void the PMA on these grounds alone.

Facts demonstrating relevance and discoverability of at least 3 years of financial records:

105. It's become entirely clear from one particular fact that Mr. Davis confirmed by email and also addressed in front of this Court on December 19, 2024 that Wife and Mr. Davis cannot logically be offering a complete or accurate statement.
106. While Husband understands that the post marital agreement provides better than a 50/50 split for Husband (given current disclosures), it does not mean that the agreement is "reasonable" which simply cannot be determined without additional discovery into Wife's finances – the target of all the obstruction tactics from Wife and Mr. Davis.
107. On the financial affidavits, Wife's assets over liabilities with what's disclosed to date is \$104,611, while Husband's is in excess of \$800,000. (Docket #34, #43).
108. Wife's refusal of Husband's offer to void the PMA tantamount to proof the PMA is in fact unreasonable for Husband. (Docket # 90 – transcript of December 19, 2024 status conference, p.7, L12-20).
109. There is simply no logical explanation for objecting to voiding an agreement that is costing Wife money other than that Wife has not yet revealed the full story and extent of marital assets.
110. Clearly, there is a betrayal that is hidden, and if the Court continues to shield that and unethical conduct to conceal it from any scrutiny, this family will simply be unable to move on to an effective coparenting relationship if the Court allows Mr. Davis and Wife to continue with the concealment.
111. Petitioner insisted during PMA negotiations that she would not leave the marital home at 3934 E Eden Roc Cir., Tampa, FL 33634, until she could purchase a new home for herself and the children.

112. She further claimed she lacked sufficient funds to make such a purchase, pressuring Respondent to agree to the \$100,000 payment to facilitate her departure.

113. This insistence created a coercive environment where Respondent felt compelled to enter the PMA to expedite Petitioner's exit from the marital home and reduce ongoing familial conflict, particularly in light of his declining health and inability to work.

Conclusion

114. The Florida Family Law Rules of Procedure and statutes underscore the paramount importance of financial transparency in dissolution proceedings, as evidenced by Florida Family Law Rule of Procedure 12.285(a)(1), which mandates that parties provide sufficient information to ensure "full and fair disclosure" in the Court's determinations.

115. Florida Statutes § 61.075(1) further reinforces this purpose, directing courts to equitably distribute marital assets based on "all relevant factors," including "any factor necessary to do equity and justice between the parties," which here necessitates discovery to assess the extent of Petitioner's financial misrepresentations.

116. Given Respondent's health and career concerns, the parties' backwards position on the marital agreement given current financial evidence, and the fact that Wife has received far more financial discovery than Husband, which again, is backwards given the fact Husband made proper disclosures while Wife made misrepresentations, it's critical to allow Husband's financial discovery to go out quickly.

117. As the Florida Supreme Court articulated in *Canakaris v. Canakaris*, 382 So. 2d 1197, 1202 (Fla. 1980), "the trial court must have the discretion to consider all the circumstances" to achieve an equitable outcome, a principle undermined if Petitioner's dishonesty remains obscured.

118. It's clear from the litigation to date that the parties will not be able to resolve any of these issues amicably absent getting the parties on at least equal footing as to information.

119. Incredibly, Wife, the non disclosing spouse has received far more financial information than Husband, disclosing spouse which is completely opposite of the Family Law System's intent.

120. Furthermore, Wife has already breached the PMA in changing her position on custody, with zero cause or explanation.

121. That independently allows for cancellation of the Agreement or at least the Court to allow Husband the necessary discovery.

RELIEF REQUESTED

WHEREFORE, Respondent, CHRISTOPHER HANSON, respectfully requests that this Court:

A. Declare the Post-Marital Agreement dated October 8, 2023, void ab initio due to fraud and duress perpetrated by the Petitioner; (Although Husband maintains his argument that this is not required under the law in order to allow the discovery Husband seeks),

B. Order full discovery into Petitioner's financial records (including the Chase Subpoenas at issue) to ascertain the true extent of marital assets and liabilities for equitable distribution;

C. Award Respondent reasonable attorney's fees and costs incurred in pursuing this motion and other discovery efforts, pursuant to Florida Statute 61.16, given the necessity driven by Petitioner's misconduct;

D. Grant such other and further relief as the Court deems just and equitable under the circumstances.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing has been furnished to Scott Paul Davis, Esq., via email to scott@davislawtampa.com and service@davislawtampa.com, and all others designated on the e-service list on this 28 day of February, 2025.

/s/ Christopher Hanson

CHRISTOPHER HANSON

Primary E-Mail: cahanson77@yahoo.com

**IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, FLORIDA**

**CASE NO.
DIVISION:**

IN RE MARRIAGE OF:

**SARAH HANSON,
PETITIONER,**

AND

**CHRISTOPHER HANSON,
RESPONDENT.**

PETITION FOR DISSOLUTION OF MARRIAGE WITH DEPENDENT/MINOR CHILDREN

Petitioner, SARAH HANSON, hereby petitions this Court to enter an decree dissolving the marriage between her and Respondent CHRISTOPHER HANSON, and incorporating a child-care parenting plan that provides for 50/50 custodial rights, and states:

1. On October 28, 2016, the parties were married.
2. The parties are residents of the State of Florida and have been for more than 6 months.
3. The parties' primary address is in Tampa, Hillsborough County, Florida.
4. The couple have two minor children: born 10.28.2017 and 07.10.2019.
5. Due to irreconcilable differences the parties outlined a separation agreement on October 8, 2023, which did not include financial disclosures.
6. A copy of the agreement will be filed under separate cover.
7. Pursuant to various discussions held between the parties surrounding Petitioner's departure of the primary residence, Petitioner located a property for purchase as her homestead. Petitioner acquired a loan in her name with a closing date set for November 8, 2023. The closing was moved up to November 3, 2023, albeit not

formally by addendum to the contract thereby allowing additional time before the formal closing date passed.

8. Shortly prior to the closing of November 3, 2023, Petitioner learned Respondent would be required to sign documentation addressing the homestead nature of the newly acquired property.
9. Respondent confirmed he was agreeable to signing such documentation and requested copies of the documents to review.
10. The documents for Respondent to sign were not provided to Petitioner until November 2, 2023, for review. Petitioner provided same to Respondent.
11. Part of the documentation included Mortgage paperwork that appeared to identify the Respondent as a borrower. In light of this language, clarification was sought as to the basis for the documentation and the legal requirements surrounding same.
12. After objections were raised, the documentation was adjusted to clarify to even a lay person that the Mortgage did not obligate the Respondent for the note but was required per the Florida Constitution.
13. General Counsel who specializes in mortgages also provided clarification as to the need for the spouse to sign the documentation as a legal formality in order for the mortgage on the new property to be secured.
14. Respondent is adamant in not signing off on the documentation and has therefore hindered the process to the point Petitioner cannot secure the property sought for her and her children to reside and effectuate the separation living quarters.
15. The sole reason for the property to have been lost to Petitioner is Respondent's actions as the loan had been fully funded with both the seller and buyer having signed all documents to complete the contract. The title company cannot release the funds without the signing off on the Mortgage.

16. Petitioner's homestead property, necessary for her formal separation, would have been acquired but for Respondent's steadfast refusal to sign off on the required paperwork for the loan to be secured.
17. In order for Petitioner to secure a Homestead in the State of Florida via mortgage, Respondent must either sign off on the Mortgage (not the promissory note) or the parties must be Divorced.
18. To the extent an extension on the closing may be acquired on the property already approved and mortgaged (which is at the discretion of the sellers), Petitioner seeks an emergency declaration from this Court as to her rights and Respondents rights as to the property and whether Respondent may be compelled to sign the necessary paperwork.
19. To the extent the property cannot be acquired in light of the late timing and the deadlines already in existence, Petitioner requests this Court determine the parties' respective rights as to the loss of the Wife's new homestead property to include Respondent reimbursing Petitioner for the lost escrow as a result of the inability to close, totaling \$10,000.00, as well as for all fees associated with the purchase of the property including appraisal and inspection fees.
20. Petitioner also requests Respondent be held responsible to the extent his actions have now resulted in the forfeiture of the property and the loan already approved for Petitioner. Interest rates may rise as will the monthly payment for a comparable home suitable for Petitioner and her children. To the extent similar terms cannot be secured, Petitioner requests this Court determine Respondent's responsibility and determine Respondent be responsible for any contract that results in less favorable terms are secured following a formal divorce decree.

21. Petitioner requests this Court address any and all remaining aspects of the divorce to include the current living situation as Wife cannot now move out with the children without purchasing a property unless Husband signs off on same, requests the Court address the lost homestead property of the Wife, addresses child support, if any, and enters any and all decisions declaring the parties legally divorced.

WHEREFORE, Petitioner SARAH HANSON, respectfully petitions this Court for declaration of Divorce and for the relief sought in this petition, to be amended as necessary, and for any other relief this Court deems just and proper.

DATED NOVEMBER 7, 2023

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